

Contract No. _____

MEMORANDUM OF UNDERSTANDING
BETWEEN THE CITY OF CHEYENNE
AND CHEYENNE FRONTIER DAYS, INC.

This Memorandum of Understanding (MOU) is between the City of Cheyenne, a municipality duly organized and existing under the laws of the State of Wyoming (City), whose address is 2101 O’Neil Avenue, Cheyenne, Wyoming 82001, and Cheyenne Frontier Days, Inc., a Wyoming corporation (CFD), whose address is P.O. Box 2477, Cheyenne, Wyoming 82003. The City and CFD are collectively referred to as “Party” or “Parties.” This MOU shall become effective upon the date of the last signature affixed hereto., in which the parties agree as follows:

RECITALS

WHEREAS, the City owns land and buildings near Frontier Park, which have been used for parking, camping, and other activities by CFD. Specifically, the City owns:

- a. Land around Lake Absarraca, which is described as that area bordered by Kennedy Road on the south, Interstate 25 on the west, the Governor’s Mansion property on the northwest corner, and the Airport Golf Course on the north, northeast and east.
- b. The “E” lot parking area described as north of Lions Park Drive, south of the Municipal Aquatics Center, and east of Carey Avenue.
- c. The City of Cheyenne Kiwanis Community House lot located in Lions Park, between the Putt Hutt miniature golf course and Sloan’s Lake.
- d. Paved parking lots located adjacent to the Boy Scouts' meeting house, between Sloan’s Lake and the Western Walkway, which for the purposes of this agreement are named “Tow” lots.

WHEREAS, the City and CFD have, in the past, entered into agreements regarding the use of the City-owned parcels and structures. This MOU is similar to earlier agreements.

WHEREAS, during the 2023 Cheyenne Frontier Days celebration, CFD proposes to:

- a. Provide overnight camping at Lake Absarraca, from the Sunday preceding the Cheyenne Frontier Days celebration through the Monday after the celebration ends.
- b. Provide public parking at the “E” lot. There will be no overnight parking in the “E” lot. This additional parking for automobiles in the confines of Lions Park is to facilitate access to the Cheyenne Frontier Days Old West Museum and relieve parking pressure in “the Avenues”.

- c. Provide for storage of towed vehicles at the “Tow” lot.
- d. Provide for and host activities associated with Cheyenne Frontier Days in the City of Cheyenne Kiwanis Community House as arranged for and scheduled through the City of Cheyenne Community Recreation and Events Department. Any event hosted in the City of Cheyenne Kiwanis Community House during the ten (10) day celebration will be discussed and agreed upon by both parties no later than June 1, 2023. Times and dates not reserved by June 1, 2023, will be made available to the public. CFD will manage and provide security for the parking lots located next to the City of Cheyenne Kiwanis Community House during their events. The cost of the security is the responsibility of CFD; and,

NOW, THEREFORE, in consideration of the mutual promises by the City and CFD made each to the other, the parties agree as follows:

1. Purpose. The purpose of this MOU is for the City and CFD to work together during the 2023 Cheyenne Frontier Days celebration to provide parking and amenities to CFD participants and volunteers.

2. Term. This MOU shall commence June 1, 2023, and terminate August 31, 2023, unless sooner terminated by either party upon thirty (30) days written notice. This shall not affect CFD’s obligations under Section 3 of this MOU.

3. Payments. CFD agrees to provide payment to the City pursuant to the terms and conditions established below.

4. Responsibilities of CFD. CFD Shall:

- a. Maintain control in the areas covered by this MOU.
- b. Provide portable toilet facilities for the areas covered by this MOU.
- c. Mark and designate camping and parking slots to maximize use of the space.
- d. Provide car parking and revenue collectors.
- e. Allow for public access to Lions Park along Lions Park Drive during the celebration.
- f. Police and patrol the campground on a 24-hour basis.
- g. Encourage RV units to utilize the CFD provided sanitation vendors.
- h. Provide an adequate area and access for day fishermen at Lake Absarraca.
- i. Provide daily clean up and final clean-up of all areas covered by this MOU.

- j. Not allow permit (“sticker”) parking; all parking will be fully paid.
 - k. Restore the ground surface in “E” lot to its condition prior to the 2023 Cheyenne Frontier Days celebration.
 - l. Provide an accounting of revenue and expenses for all revenue producing areas following the end of the 2023 Cheyenne Frontier Days celebration. Such accounting shall be submitted to the City Clerk no later than November 1, 2023.
 - m. Provide for responsible use of the City of Cheyenne Kiwanis Community House within the established rules and regulations for facility use, and for purposes authorized by City ordinance and resolution.
 - n. Coordinate with the City Sanitation Department for dumpsters to be placed and emptied daily for the areas covered by this MOU.
5. Responsibilities of the City. The City shall:
- a. Assist with T-post installation for fencing of the areas, as decided by the parties prior to the Monday preceding Cheyenne Frontier Days.
 - b. Provide for use of the City of Cheyenne Kiwanis Community House to include services for opening/closing, general building supervision and custodial services per standards defined within the established rules and regulations for facility use.
6. Specific Provisions
- a. Payment. The parties agree that the first twenty-nine thousand dollars (\$29,000.00) to be generated from the parking lot and camping rentals will be paid over to CFD. One-half of the fees, fourteen thousand five hundred dollars (\$14,500.00) will be the City’s contribution to CFD’s annual 4th of July fireworks celebration, and the other one-half of the fees, fourteen thousand five hundred dollars (\$14,500.00) will be CFD’s contribution to the 4th of July fireworks celebration.
 - b. Parking Lot and Camping Net Revenue. It is further agreed that the remainder of the parking lot and camping net revenue, after the contribution to the 4th of July fireworks celebration and payment of expenses associated with collection of parking and camping revenue, shall be divided equally between the parties and CFD shall deliver to the City, the City’s revenue portion with the accounting of revenue and expenses pursuant to Section 1(m) of this MOU. The remainder of the City’s portion of these funds will be deposited into the City’s Parks Project Fund.
 - c. Rent of Lot. The City agrees to rent the Tow Lot, E-Lot, Lake Absarraca

Campground and use of the City of Cheyenne Kiwanis Community House to CFD for One Dollar (\$1.00).

- d. Parking and Camping. This MOU covers parking and camping on the City-owned parcels from Wednesday, July 5, 2023, preceding the 2023 Cheyenne Frontier Days celebration through the Monday after the celebration ends, and provisions for reservation of the City of Cheyenne Kiwanis Community House use during the ten (10) days of the annual celebration.
- e. Compliance with laws. CFD agrees to comply with all applicable federal, state and local laws, rules and regulations.

7. Insurance Requirements

CFD must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness, or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and

- c. Consultant shall maintain said “claims made” coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates “claims made” coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period (“tail coverage”) which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

8. **Additional Insurance Information**

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers’ compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City’s failure to request or review such policies, endorsements, or certificates shall not affect the City’s rights or Consultant’s obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. General Provisions.

- a. Amendments. Any changes, modifications, revisions, or amendments to this MOU which are mutually agreed upon by the Parties to this MOU shall be incorporated by written instrument, executed and signed by all Parties to this MOU.

- b. Assignment. No Party may assign or transfer the responsibilities or agreements made herein without the prior written consent of the non-assigning Party, which approval shall not be unreasonably withheld.
- c. Applicable Law. The construction, interpretation, and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this MOU and the Parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.
- d. Compliance with Laws. The Parties shall keep informed of and comply with all applicable federal, state, and local laws and regulations in the performance of this MOU.
- e. Indemnification/Hold Harmless. The Parties agree to indemnify, hold harmless, and defend the other from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result the performance of their duties, including death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders.
- f. Nondiscrimination. The Parties shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act, Wyo. Stat. § 27-9-105, *et seq.*, the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy, or qualifying disability in connection with the performance under this MOU.
- g. Governmental Immunity. The City does not waive governmental immunity by entering into this MOU and specifically retains all immunities and defenses available to it as a governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws. Designation of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of governmental immunity.
- h. Third-Party Beneficiary Rights. The Parties do not intend to create in any other individual or entity, the status of third-party beneficiary and this MOU shall not be construed so as to create such status. The rights, duties, and obligations contained in this MOU shall operate only between the Parties to this MOU and shall inure solely to the benefit of the Parties to this MOU. The provisions of this MOU are intended only to assist the Parties in determining and performing their obligations under this MOU. The Parties to this MOU intend and expressly agree that only parties signatory to this

MOU shall have any legal or equitable right to seek to enforce this MOU, to seek any remedy arising out of a Party's performance or failure to perform any term or condition of this MOU, or to bring an action for the breach of this MOU.

- i. Force Majeure. The performance of this MOU by the Parties shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the Parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this MOU. This MOU may be cancelled by any Party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other Party.
- j. Severability. If any provision of this MOU is found to be invalid or unenforceable for any reason, the remaining provisions will continue to be valid and enforceable. If a court finds that any provision of this MOU is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision will be deemed to be written, construed, and enforced as so limited.
- k. Notice. All notices arising out of or from the provisions of this MOU shall be in writing and given to the Party either by regular mail or delivery in person.
- l. Termination. Any Party may terminate its participation in this MOU, with or without cause, by providing thirty (30) days written notice to the other Party.
- m. Prior Approval. This MOU shall not be binding upon the Parties, no services shall be performed under the terms of this MOU, and no payments shall be made until this MOU has been reduced to writing and approved by all necessary authorities.
- n. Entirety of Contract. This MOU represents the entire and integrated agreement between the Parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

10. Signatures In witness whereof, the Parties to this MOU, through their duly authorized representatives, have executed this MOU on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this MOU.

CITY OF CHEYENNE

Date
(SEAL)

Patrick Collins, Mayor

Attest:

Kristina F. Jones, City Clerk

CHEYENNE FRONTIER DAYS, INC.

Date

By its CEO